

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-013
Amendment to Title 17 of the Chickasaw Nation Code
(Integrated Crimes)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations establishing criminal offenses, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 1, Section 17-101.2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-101.2 **INTEGRATED CRIMES.**

A. Unless otherwise prohibited by applicable law, the criminal acts or omissions as prescribed by the State of Oklahoma along with their elements and as interpreted by the Chickasaw Nation courts, shall apply when any person within the treaty territory of the Chickasaw Nation is guilty of any act or omission, although not made punishable by any enactment of the Chickasaw Tribal Legislature, would be punishable if committed or omitted within the State of Oklahoma.

B. Notwithstanding the provisions of Title 5, Section 5-701.3, of the Chickasaw Code,

1. if such crime is classified as a felony within the State of Oklahoma, it shall be punishable by a fine of not more than fifteen thousand dollars (\$15,000.00), a term of imprisonment not to exceed three (3) years, or both.

2. if such crime is classified as a misdemeanor within the State of Oklahoma, it shall be punishable by a fine of not more than five thousand dollars (\$5,000.00), a term of imprisonment not to exceed one (1) year imprisonment, or both.

C. The applicable criminal procedures, Rules of Evidence, and any other procedural rules, as well as the Defendant's rights and privileges shall be those recognized under enacted laws of the Chickasaw Nation. State and Federal statutes and case law will not be binding on the Chickasaw Nation. Nothing in this section shall be construed to waive the sovereign rights and immunities of the Chickasaw Nation.

D. Unless otherwise prohibited by applicable law, the criminal acts and omissions prescribed by a political subdivision of the State of Oklahoma, including cities and incorporated towns, along with their elements and as interpreted by the Chickasaw Nation courts, shall apply when any person within the treaty territory of the Chickasaw Nation is guilty of any act or omission, although not made punishable by any enactment of the Chickasaw Tribal Legislature, would be punishable if committed or omitted within said political subdivision of the State of Oklahoma.

1. Offenses under this Subsection D shall be punishable by a fine of not more than one thousand two hundred dollars (\$1,200.00).

a. An offense charged under this Subsection D shall not be charged as a felony and shall not be punishable by imprisonment.

b. The Chickasaw Nation court shall publish, and update as necessary, a fine schedule for common offenses under municipal codes and codes of other subdivisions of the State of Oklahoma. The failure to include an offense on the fine schedule shall not prohibit prosecution of an offense under this Subsection D. If an offense is not included in the fine schedule, the Court may, but shall not be obligated to, use the punishment of the underlying municipal offense as a guide for sentencing.

c. Any person fined hereunder who is financially able but refuses or neglects to pay the fine or costs may be compelled to satisfy the amount owed by working on the public grounds and buildings of the Chickasaw Nation, at a rate not less than fifty dollars (\$50.00) per day for useful labor, until the fine or costs are satisfied, as directed by the court.

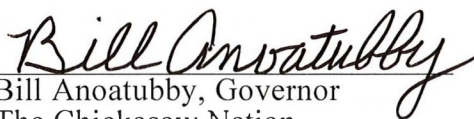
2. The provisions of Title 5 Subsection 5-301.9(B) (Rights of Defendant), Section 5-301.12 (Court Appointed Attorneys), Section 5-301.13 (Victim Rights), Subsections 5-601.1(A)-(C) (Trial by Jury or the Court) shall not be applicable to any proceedings under this Subsection D. The provisions of Title 5 Subsection 5-301.9(A)(1)(b) (Rights of Defendant) shall not be applicable to any proceeding under this Subsection D insofar as such subsection confers the right to court-appointed counsel. The provisions of Title 5 Subsection 5-301.9(A)(6) (Rights of Defendant) shall not be applicable to any proceeding under this Subsection D insofar as such subsection confers

the right to a trial by a jury. The Court, in its discretion, may be lenient in its application of Title 5, Chapter 13, Rules of Evidence, so long as such leniency does not unduly prejudice the Defendant.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on August 18, 2023, by a vote of 11 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 23 2023

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-013
Amendment to Title 17 of the Chickasaw Nation Code
(Integrated Crimes)

Explanation:

This resolution allows the Chickasaw Nation to prosecute offenses enacted by municipalities in the Chickasaw Nation courts.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature